11/14/2023 - Brooklyn Union & KeySpan Gas - 23-G-0225/0226

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.

CASE 23-G-0226 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service.

PUBLIC STATEMENT HEARING

DATE: November 14, 2023 at 5:30 p.m.

LOCATION: Brooklyn Central Library
The Dweck Center
11 Grand Army Place
Brooklyn, New York 11238

BEFORE: ALJ DAKIN LECAKES
ALJ MAUREEN LEARY

Reported by Danielle Christian

(The hearing commenced at 5:30 p.m.)

A.L.J. LEARY: It's -- it's really great to see so many people here participating in a proceeding like this. And I'm sure there's a lot of emotion here. I'm Judge Leary, as Judge Lecakes told you, many of you know me because I did the last rate case and I did the Greenpoint vaporizer case, which wasn't actually a case.

I am going to ask everyone right now to turn off your cell phones. That's probably the fifth or sixth time I've heard somebody's alarm or cell phone or email come in. So would you, you know, give the -- the room that courtesy? Just turn off your cell phone and keep an eye on it, so you don't miss a -- a call from your babysitter.

This is a public statement hearing. And it was noticed by the Secretary to the Public Service Commission on October 16th, 2023. Copies of that notice are available in English and Spanish at the registration desk. Just see the folks out there. I'm an Administrative Law Judge as Judge Lecakes says and I'm working with another judge.

They're really three of us in the mix here, Judge Costello, who is in Jamaica Queens right

now, doing a public statement hearing up there. We're responsible for presiding over the multitude of things that happen in this proceeding. And I actually forgot to ask, Ms. Christian, are we on the record? I'm sorry. My -- my bad.

THE REPORTER: Uh-huh.

A.L.J. LEARY: Let me just call the case. So we have that. I call case 23-G-0225, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations for the Brooklyn Union Gas Company, doing business as National Grid New York for Gas Service.

And case 23-G-0226, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation, doing business as National Grid, again for Gas Service.

So a couple things I wanted to focus your attention on, one of which is the timeline that was -- that was up on the PowerPoint presentation. So we're having public statement hearings tonight. And then, there's this gap of -- of time between now and when rates actually go into effect.

During that period of time, there's a

lot of people, some of whom are in this room, who are working with the Company, with Department of Public Service staff, and other parties to hammer out an agreement that has the potential to reduce the -- the rate impact of this filing over a period of generally three years or so.

I'll get into a little bit more detail about that later. As some of you know, we had -- and Mr. Decicco said we held virtual public statement hearings in August. If you testified at or provided a public statement at that hearing, your statement is on the record. You do not need to speak this evening to say the same thing.

In fact, we urge you not to because we have a lot of people who have registered to speak, many of whom did not attend the August virtual public statement hearing. So please be courteous to the other folks in the room. If you've already had your chance to provide a comment and unless you're saying something absolutely new, which I -- I don't know but I tend to doubt, there is no need to comment tonight.

Please, you know, take -- take a back seat for the time being. We'll try to get to everyone tonight but the reason we had to start at

five o'clock is because the library needs us to be out of here by 7:45. So I have to ask you all to impose on yourselves, and I will impose on you, a three-minute time limit.

If you have lengthier comments, please provide them to the Secretary in writing. You can give them to me this evening and I will get them to the Secretary. But please be conscious that there are lots and lots of people that want to speak.

This public statement hearing is not a question and answer session. It is all about listening to you. That's what we're here for and what the Company is here for. There are a number of parties that are not in the room. They advanced positions that in some cases are very very different than the Company’s.

Just remember, there's a lot of sides to this story and a lot of people trying to create the best result here. So what does the company want? I just want to stress, Mr. Decicco made it pretty clear that they're looking to increase by April 1, their revenues to $414 million which represents a 28 percent increase in base delivery revenues or a 17 percent increase in total revenues that would be

reflected on utility bills in this service territory for KEDNY and KEDLI is, I think a long -- mostly Long Island service territory.

So these two cases are brought together. I called two numbers. Keep in mind those two numbers because if you want to get into our system, our electronic database in the Department of Public Service, you're going to need those numbers to get in and look at -- for information in the case.

Again, all of that information is out at the registration table. So the actual bill impacts associated with the proposal by the companies is going to vary on any particular customer class. Now, many of you are probably residential customers. You'll have a certain impact.

And within that impact as a residential customer, if you have gas heat, it's going to be a different impact from someone who's just cooking with natural gas. So keep that in mind when you're trying to sort of say what is the impact on me?

It's not necessarily something that we can say Mr. Decicco or I -- no one can say what that impact is actually going to be. So there are

customer -- residential customer classes, there are commercial customer classes, so if you own a business, there are industrial classes that if you own a big business, so it's all done by classes.

Different classes pay different rates or different shares, I should say. So what's our role, the Administrative Law Judges? Really, it comes down to creating a complete record. That's what we're after. And your comments tonight are all about being a part of that record.

That's why they're important because the Commission will consider your comments just like it does all the other evidence in the case. Your comments tonight will be trans -- are being transcribed. There'll be a written transcript. It will be posted to our website and you will be able to read those comments, as will the Commission.

They will consider those comments when making a decision here. So what else is included in the record in addition to your comments? It's all about different testimony by experts and different documentary evidence that is associated with that testimony.

They're a part of the record in

addition to your comments. So one of the things that Mr. Decicco touched on and I want to just put a finer point on it, is that, many of these rate case filings, they result in a negotiated settlement that generally covers a three-year term.

And -- and the reason that that's beneficial is because the rate impacts get sorted out over three years rather than just one year. And so the bill impacts potentially are less over that three-year term. That's why a negotiated settlement is a positive thing. Those settlements are called joint proposals.

If you see on our website a joint proposal, that's the document you're going to want to read to see what -- what the settlement among the parties is. Not everybody signs it. Sometimes everybody signs it but that's the document that is -- that we call the negotiated settlement.

So let me just talk about the Commission's role for a moment. This is really important because the Commission rather than us, is really the ultimate decisionmaker on what happens in this proceeding. We are responsible for making recommendations after a review of the record.

And I'm not saying that, you know, that -- that doesn't mean a lot. It does. But it all goes into the mix because the Commission can take our recommendations, toss some, adopt some. They can take the settlement, the joint proposal, say no or yes, this is good thing or let's revise this. So they have a lot of discretion in the process.

And it is a really -- it's a really good and thorough process. So we have six Commissioners now, we previously had seven. our Chair is Rory Christian. And the other Commissioners are Diane Burman, James Alesi, John Howard, David Valesky and John Maggiore. They meet and discuss the record and come up with their decision. That's the process.

So let's talk about the process this evening because we have lots of people. I am going to call you as you have signed up. And again, this is not question and answer session. This is just to hear you. Please would all of you be respectful of anyone who is up here speaking? It’s very important that we not have disruption and so forth.

As I mentioned, the court reporter really needs you to come up, spell -- state your

name, spell your last name and then speak fairly clearly and somewhat more slowly than you otherwise might, so that your comments can be taken with accuracy and put into the record. This is not an evidentiary hearing.

If you want to provide me with your comments, I will see that they will be posted as. But evidence and those types of things are not for this session here. I want to stress that this is not the only opportunity to comment. The notice that the Secretary issued provides you the other ways. You can call up, you can write and send it by snail mail.

You can post it to the Department's website. You can send it by email to the Secretary. So there are a couple of other things that you can do besides standing up here and providing a comment that is being transcribed. If you're shy or something occurs to you later tonight or tomorrow, you -- you absolutely have the opportunity to comment later.

And those comments will be considered throughout the proceeding. So I'm going to -- oh, if anybody has not completed a registration card but wants to come up and make a statement, please return to the registration table outside of the room.

Complete a card and our outreach folks will bring it in and you'll get in the queue.

I'm going to call two people. The first one's going to come up to give comment and the next one I'm going to call is "on deck," to use a sports term. They should be ready, probably come sit up here, so we save time. You will be next, so that's my protocol.

And again, keep any lengthy statements as short as possible because we're going to hold you to a three-minute limit. And I'll just ask you very nicely to wrap up when that three minutes is up. So our first -- where's Ms. Spindelman?

So you spoke at the virtual public statement hearing. Would you mind stepping aside for the time being? I know you were first but I really -- unless you're saying something new, I'd really rather get to people who have not had the opportunity.

MS. SPINDELMAN: I'm -- I'm happy to let other people go before me but I still would like to deliver my statements tonight. There are different points of view and you have never heard them before.

A.L.J. LEARY: Okay.

MS. SPINDELMAN: But I will wait to allow everybody's statements.

A.L.J. LEARY: Okay. Good. Fair enough. Thank you. All right. So I'm just going to skip you for the time being. Paul Scariano, come on up and Barbara Hertel. Ms. Hertel, were you also at the virtual? Your name sounds -- where is Ms. Hertel? Come on up.

MS. HERTEL: Hi.

A.L.J. LECAKES: Hello.

MR. SCARIANO: Good evening. My name is Paul Scariano, S-C-A-R-I-A-N-O. And I am the Chair of the Board of Cristo Rey Brooklyn High School. We are part of a national network of schools that serve predominantly low-income students including in East Harlem and here in Brooklyn.

A.L.J. LEARY: Uh-huh. Okay.

MR. SCARIANO: Since our founding in 2004, we have been strengthening the competence, confidence, and aspiration of students from economically disadvantaged families and empowering them to build fulfilling lives that advance the common good. I am also a Brooklyn native and a New

York City educated civil engineer working in the field of public works construction in both transportation and clean energy.

I am proud to testify today in support of National Grid's rate proposal. National Grid has been an invaluable partner to Cristo Rey High School -- to the Cristo Rey High School community. And it has helped us in our endeavor to shape bright minds for future success.

National Grid partners with us to support our Corporate Work Study Program, sponsoring three of our students each year to gain hands-on in-depth experience in a real-world professional setting.

This innovative program enables students to directly contribute to the cost of their education while exposing them to the world of work. These students learn firsthand the values of hard work and responsibility while -- while building professional relationships. It's a unique program that provides exposure to career paths in their own backyards and equips our students for future success.

In addition to the critical support of the corporate work study program, the National Grid's

foundation also provides a yearly grant for our summer program. The summer program, happens every summer, obviously. And every student goes to this where they learn computer skills, professional etiquette, basic office tasks, networking schools -- networking skills, resume writing as well as basic math and literature.

The program incorporates not only traditional classroom style instruction, but also hands-on learning opportunities including visits to partner organizations and a practice networking event. These programs are critical to ensuring student success throughout their academic and professional careers.

We are proud to have a steadfast partner in National Grid to change the lives of our students, their families and communities.

A.L.J. LEARY: Okay.

MR. SCARIANO: National Grid goes above and beyond the call of duty for an energy company, not only providing energy for our homes and businesses but energizing our student's futures. I have seen National Grid's commitment to the community first hand.

Brooklyn is the company's home and National Grid employees are literally our neighbors. And they're active support in helping make our students leaders in their local communities of Brooklyn. National Grid's impact in Brooklyn goes far beyond Cristo Rey Brooklyn.

Through their Project C commitment, National Grid provides tens of thousands of dollars in grant funding and dedicates 100s of volunteer hours to supporting pillars of the Brooklyn community like the Brooklyn Botanic Garden and the Brooklyn Library, as well as neighborhood projects like park cleanup, things that, you know, make communities better on a more local level.

National Grid's generosity has helped local organizations and small businesses thrive and we are thrilled to have them in our community. As New York navigates the clean energy transition, it is vital that National Grid have the resources necessary to continue providing Brooklyn with affordable, reliable electricity and heat.

As an engineer, I see the positive benefits of National Grid's research, development, and planning to use new and emerging technologies

that will certainly help us protect our environment and communities and improve the day-to-day lives of our citizens. I'm honored to be here today to support National Grid.

The entire Cristo Rey community is deeply grateful for what National Grid has done for us. And we look forward to working with them to continue energizing communities and our young people in Brooklyn. Thank you.

A.L.J. LEARY: Okay. Ms. Hertel? On deck, Michael Davis. I don't want anybody to touch this, okay? It's up here for a reason because you can hear the pitch if you start bringing it down closer to your mouth. People can hear you. You can hear me, right? Okay.

MS. HERTEL: Hi, my name is Barbara Hertel. I'm part of Food and Water Watch and SANE Energy and lots of different groups. So National Grid is not the most reliable. I appreciate that, you know, they want to cover, you know, cover the C.L.C.P.A., but they've lied to us before about the pipeline they were installing.

They got little permits here and there and here and there through East New York. And then

they, you know, they tried to make it so they weren't building a pipeline to Greenpoint, but they were. And so I do not trust them to do what they say they want to do. I really, that -- feel that their -- their rate hike is very extreme and it's very high.

A lot of people will not be able to afford this. I looked at my -- in his slide there. I manage a -- a three -- a multi-family building which is like $300 extra a month which is really extraordinarily high. And I don't think that's fair to other people who don't have that kind of money in their rents and things.

So I just don't believe them. I think fossil fuels are, they are going out. And they do say things that, you know, like they're going to try to help the electricity people. But I don't believe that's true. I really think they wants us do their -- pay their investors more money, keep the investments coming in. And I just think the rate hike is ridiculous. Thank you.

A.L.J. LEARY: Thank you. Mr. Davis, Michael Davis and Ken --

MR. SCHLES: Schles.

A.L.J. LEARY: Schles, come on up.

You are on deck.

MR. DAVIS: Thank you.

THE REPORTER: Excuse me, point the microphone at the ceiling the (unintelligible).

A.L.J. LEARY: That's not good.

THE REPORTER: (unintelligible).

A.L.J. LEARY: A little closer, just say your name.

THE REPORTER: It's like a --.

MR. DAVIS: Hi, my name is Michael Davis, D-A-V-I-S.

A.L.J. LEARY: How's that?

MR. DAVIS: Thank you, Judges.

THE REPORTER: (unintelligible).

A.L.J. LEARY: Go ahead.

MR. DAVIS: Okay. I've lived in New York City all my life and in Brooklyn for the last 34 years. The hearing we're engaged in today is designed to take democracy out of the process of designing our future -- of deciding our future. A future we know is looking dim, fires, floods intolerable temperatures, forced migrations are becoming commonplace and we know why.

Like other lethal industries, guns and

tobacco, for example, National Grid is regulated in a way favorable to their interests and fatal to ours. We are here because this is our chance to make a public comment en masse, in-person, in front of the Public Service Commission who are not here.

We each get two or three minutes and then we're cut off by an Administrative Judge. National Grid, on the other hand, gets to make a full presentation during which they lie and greenwash with the approval of the Commission. The Commission is appointed by the governor. According to campaign records, our current governor has taken nearly $500,000 from fossil fuel utilities and lobbyists.

The only way to sit at the table with the P.S.C. staff, Commissioners, and National Grid is to join a rate case. There is a rate case in progress now. Its purpose is to decide if National Grid will get the nearly $4 billion rate increase for which they are asking.

The negotiations between National Grid and other interested parties are secret. It is a violation to speak about the details, the numbers, the reasons for the numbers, the statements made by the parties inside these secret proceedings.

Citizens and organizations opposing the rate increases are free to join the negotiations, but they may not speak about what goes on in those rooms.

The rate cases -- the rate case process is an elaborate scheme. The rules are designed to exclude. The people opposing National Grid in this case and others before are brilliant, and brave, and spent hours in these -- in these negotiations. They are heroes. How many people could spare the time to participate or learn the system?

These rules are designed to keep the public out and to keep the public ignorant of the process itself. Yet, 4 billion of our dollars are at stake as well as the continued survival of this planet. Why are these negotiations secret? Why aren't the Commissioners elected by the public?

Why isn't every word spoken publicly? Why is the press kept out? National Grid is anything but national. They are a private multinational investor-owned utility with allegiance only to their investors. All energy production and production decisions must be public. The current process is corrupt. Thank you.

A.L.J. LEARY: Ken Schles and Molly Ornati. Where's Molly? You're on deck.

MR. SCHLES: My name is Ken Schles. K-E-N S-C-H-L-E-S. I volunteer with Food & Water Watch, an environmental advocacy group with over a 100,000 supporters in New York. My family has made New York City its home for over 125 years. I've raised my two children in our home in Fort Greene.

I also volunteer with the No North Brooklyn Pipeline Alliance, a diverse collective of environmental groups representing environmental justice communities along the path of the North Brooklyn Pipeline. It was through No N.B.K.'s work that National Grid's Metropolitan Reliability Pipeline project was exposed as a boondoggle and was halted because of its overreach and uselessness --

A.L.J. LEARY: Uh-huh.

MR. SCHLES: -- despite a $129 million P.S.C. rate approval. The project that was to be the tail -- that project was to be the tail end of the $2 billion Williams pipeline also rejected not only for its uselessness, but it's harm to sensitive marine environments.

In 2019 National Grid was fined $36

million for lying to the P.S.C., claiming they had insufficient gas capacity to meet demand. A claim proven several times since to be a fabrication. Earlier this year, the P.S.C. rejected another National Grid boondoggle. The $70 million L.N.G. vaporizer project again for its uselessness.

And here we are, National Grid now wants to spend $3.8 billion of ratepayer money to rebuild infrastructure at its unnecessary Maspeth facility and replace leak prone pipe throughout its territories. Another make work boondoggle that precedes any necessity and locks ratepayers into paying for what will be by law stranded assets.

National Grid has been clear in its forward-looking statements, proposing to introduce corrosive hydrogen and so called R.N.G. into its aging system of pipes to extend its business model even in the face of climate calamity and against New York State Climate Law. Recent research by Cornell University's Dr. Robert Howard, a member of New York's Climate Action council found that natural methane gas is 24 to 274 percent worse for the environment than coal, but still National Grid wants to build.

The C.L.C.P.A. stipulates that state agencies must consider whether decisions are inconsistent with or will interfere with the attainment of the Statewide greenhouse gas emission limits. National Grid's proposals do not meet these criteria. Approval of National Grid's projects lock us into another generation of false solutions.

Expensive for ratepayers, catastrophic for the environment. It would be incumbent on the P.S.C. to open an investigation into the malfeasance of National Grid in repeatedly proposing questionable projects in violation of law rather than holding these rate hearings. The P.S.C. would better spend its time and authority in decommissioning 287 Maspeth through a public domain process, remediate its toxic brown fields and transform the land for the public good and in the public interest. Thank you for allowing me to testify.

A.L.J. LEARY: Molly Ornati and Monica Hunken, you are on deck.

MS. ORNATI: Good evening. My name is Molly Ornati. I'm here as a founding member of 350 Brooklyn, a local organization of more than 5,000 people who work for community solutions to the

climate crisis. I'm particularly inspired to testify today because of the events of just six weeks ago on September 29th, when flash flooding dumped eight inches of rain on New York City, leading many of my neighbors in the Gowanus Canal area to spend the day bailing out their basement, struggling to leave work unexpectedly to pick up their children at school, and coping with raw sewage coming up in their toilets and into their apartments. Needless to say, repairing from that day remains ongoing.

These events occur because the climate crisis is here. And if we continue to choose to look away, deny and not plan accordingly, it is not clear we will be able to survive the larger long-term chaos and destruction we see occur around the world on a daily basis.

I am here tonight to ask the New York State Public Service Commission to deny any rate hikes for the life extension and expansion of National Grid's fracked gas infrastructure. We must follow the law of the C.L.C.P.A. and retire, not replace this technology that literally poisons the earth, the ecosystems, the animals and the communities that surround it and is a key source of

today's climate crisis.

I am asking the P.S.C. to say no to any investments in the Greenpoint Energy Center located at 287 Maspeth Avenue until an independent assessment of this toxic facility can be deducted -- conducted to facilitate closing by no later than 2030.

This facility sits on a 120 acres of land in our community which is more than all of the green space combined in North Brooklyn. The impacted community must be involved in any future decisions about this facility in a deeper and more genuine way than a public hearing which in fact engages so few blue -- Brooklyn residents.

I am asking the P.S.C. to reject any investments in National Grid's leak prone pipe program for any non-emergency repairs. Replacing leaking, toxic, and dangerous gas pipelines with another gas pipeline only guarantees we will be committed to fossil fuels into the 2080s.

I am asking the P.S.C. to do its job, to undertake due diligence, and refuse National Grid's request. While there is barely still time, let's choose not to force New York City residents to

finance their own destruction and instead put our effort and resources into a future we want to live in. Thank you.

A.L.J. LEARY: Monica Hunken. And Dewey Thompson, you are on deck.

MS. HUNKEN: Thank you to the judges for hearing our testimonies. My name is Monica Hunken, H-U-N-K-E-N. I've lived in Brooklyn for 20 years and have been fighting the North Brooklyn pipeline and L.N.G. expansion on and off for the last few years. And I've interviewed residents and fellow activists who are part of the movement.

I've heard their stories of struggle and pain, but tonight, I would rather focus on our dreams. Since I am heartbroken watching the tragedy unfold in Palestine where Gaza's natural gas beckons U.S. interests to fuel a war, instead of my rage tonight, I will share my hope.

A.L.J. LEARY: Excuse me.

MS. HUNKEN: What's happening?

A.L.J. LEARY: So stay back.

MS. HUNKEN: Should I stay far? Am I too loud?

A.L.J. LEARY: I can hear you. They

can hear you from there.

MS. HUNKEN: I'll be here, yeah.

A.L.J. LEARY: No, no. Come up -- come up. I think -- I think you're okay.

MS. HUNKEN: Am I too tall?

A.L.J. LEARY: Well, that's -- that's true too. It's okay. Just stay sort of like in this zone. Okay. All right. Thank you.

MS. HUNKEN: All right. You can all hear me?

ALL: Yeah.

MS. HUNKEN: Okay.

ALL: Yeah.

MS. HUNKEN: That didn't take my time away, did it?

A.L.J. LEARY: No.

MS. HUNKEN: Okay.

THE REPORTER: Is there --

A.L.J. LEARY: You're very --

THE REPORTER: Is there a soundboard so we can better hear people's comments or --

A.L.J. LECAKES: We just -- there's not a soundboard that we have access to. You have to go out and talk to the people in the library, I'm not

sure.

MS. HUNKEN: Yeah.

A.L.J. LEARY: Yeah, go ahead.

MS. HUNKEN: Okay.

THE REPORTER: Okay.

MS. HUNKEN: Okay. So tonight, I will share my hope. And some of the visions that I've heard for 287 Maspeth. But I need your help for this, if some of you would, when I say can you see it?

A.L.J. LEARY: Your time is --

MS. HUNKEN: I'm going to be over here.

A.L.J. LEARY: Your time is up. Yeah, they'll hear you over there.

(Off the record; 06:00 p.m. to 6:03 p.m.)

A.L.J. LECAKES: Let's go back on the record.

MS. HUNKEN: I'll just -- I'll just keep going.

A.L.J. LEARY: Okay. I got you.

MS. HUNKEN: You got that before, right? Okay. Why go backwards? Okay. So -- so if

some of the audience would help me with this. When I say, can you see it, if you could say we can see it. Yeah, can you do that? Okay, thank you.

So imagine if we didn't have to spend our nights employing our energy and emotional labor naming the many crimes of National Grid, can you see it?

ALL: We can see it.

MS. HUNKEN: Imagine reclaiming that space in our lives. Imagine those 110 acres opening up the same amount of space as all the public parkland in North Brooklyn. Envision it turning into rich marshland along Newtown Creek. Green flora begins to burst through the concrete, egrets and herons make their home here. And dirt that has been poisoned for decades, sacrificed by one fossil fuel industry after another begins to slowly heal with gentle remediation efforts of local gardeners. Can you see it?

ALL: We can see it.

MS. HUNKEN: National Grid dries up, moves out and is replaced by geothermal energy networks owned by the public. The former employees' transition into renewable energy jobs they can be

proud of. Cooper Park Housing receives reparations for living next to a poisonous neighbor for decades.

Imagine a Brooklyn where the value of people's lives and health rises far, far above the value of profit for shareholders. Can you see it?

ALL: We can see it.

MS. HUNKEN: See it with me if you can a Brooklyn where low income and communities of the global majority are respected, asked for their consent, their input even into what industry dare trespass into their homes. Imagine a New York City where the human body is treated as sacred; not just the wealthy human body. Where it is held as an indisputable fact that we are all inextricably bound together in sharing this land, air, and water and are responsible for protecting it.

I see a city staying true to its commitment to a just transition, uncorrupted by corporate influence. A city that recognizes the immense real threat of climate change and acts like it's a gosh darn emergency because it is. Can you see it?

ALL: We can see it.

MS. HUNKEN: I see us all walking out

of these doors with victory in hand and never having to return to beg and plea for the most basic rights to not be poisoned, to have a healthy, safe environment to live in, to watch our families and friends grow old in together. Can you see it?

ALL: We can see it.

MS. HUNKEN: Thank you.

A.L.J. LEARY: Dewey Thompson. And Elliot Figman, you're on deck.

MR. THOMPSON: Hi, my name is Dewey Thompson. I am on the Board of Directors of North Brooklyn Neighbors which is a non-profit, a local non-profit that's dedicated to environmental and land use issues in Greenpoint and Williamsburg.

And I -- I am here -- in -- in part, I am here to -- to absorb what's going on and to hear more about the case and listening to Mr. Decicco's presentation, there were two really incredible and kind of hilarious ironies.

One is that, he -- part of the money that is being asked for in this rate hike is to address the damage caused by climate change, Sandy, and other storms from a company that creates fossil fuel that is creating climate change without de --

devoting any substantial money to fixing it.

The other incredible irony is that a lot of the money seems to be addressing customer support for customers who can't pay their bills which is an admirable plan, except it's packaged in a proposal that is going to raise everybody's rates and make it more difficult for all of us to pay our bills.

So if this is just an example of the kind of double speak built into the overall proposal, I think we can just go back to the initial thing which a lot of people have already said which is that this proposal should actually be an inspiring charge into some substantial and aggressive approach to change the reliance on fossil fuels and not aggressive attempt to read -- to invest money in a system that's already dead and that we are trying to get rid of. Thank you.

A.L.J. LEARY: Elliot Figman. And on deck is Willis Elkins.

MR. FIGMAN: So my name is Elliot Figman, F as in Frank, -I-G-M-A-N. I live in New York City. I'm the Senior Advisor of the Sane Energy Project. I'm also a member of the Jewish Climate

Action Network. I want to thank the judges for hearing our statements today.

You might be surprised to know that I'm actually coming before the Commission to praise it. And you might be wondering why, you know, what would I be praising the Commission for? Well, specifically for its finding last March that there was no need, okay, for the new vaporizers at the Greenpoint Energy Center.

That -- that National Grid claimed they needed. Responding to calls from Sane Energy Project, other advocacy groups and individuals, the Commission agreed to engage an independent consultant to conduct a review of National Grid's proposal for the new vaporizers.

And lo and behold, the independent consultant found that existing capacity was sufficient. And there was no need for the new vaporizers in the near future. In March of 2023, the Commission denied National Grid's proposal to build the unnecessary vaporizers. The moral of the story, National Grid cannot be trusted.

I want to commend the Commission for doing its job. That is, denying a request for an

unnecessary project that would have made access to gas services less affordable to ratepayers. The Commission correctly found that this would have been an imprudent investment.

Now, eight months later here we are, after that correct decision, the Commission is faced with making decisions on new request from National Grid. What we learned last year, again, is that National Grid, it's not the first time we've learned this, cannot be trusted when they claim there is a need for a project.

Their interest is in growing profits and increasing value for their shareholders. Their interests are served by continuing to tie New Yorkers to an outdated gas system that is a threat to public health and to the climate.

What the Commission showed us last March is that we could depend on it to make decisions in the public interest. And that you -- and that it was in making that decision to deny National Grid's request for an unnecessary investment, a Commission serving the public as opposed to National Grid's profits.

That is in this instance, the

Commission was in fact a Public Service Commission and not a profit service Commission for National Grid. We're calling on the Commission to do the right thing again. We want the Commission to place an unmistakable emphasis on National Grid retiring not replacing gas infrastructure.

Specifically, its extensive network of pipes and its facility at the Greenpoint Energy Center. The Commission is charged with ensuring that New Yorkers have access to affordable gas services. Approving unnecessary investments in costly projects will make access to gas service less affordable for already overburdened ratepayers.

I believe that in the KEDLI and KEDNY districts, there are about 250,000 people who are 60 days or more in arrears. So I -- I will finish up now. Thank you for the extra time. The people are watching, we're counting on the Commission to do the right thing. And I hope to have the opportunity to come back again and praise the Public Service Commission for making the right decision in the public's interest. Thank you.

A.L.J. LEARY: Willis Elkins. And Joseph Therrien, you are on deck.

MR. ELKINS: Good evening. My name is Willis Elkins. I'm the Executive Director of the Newtown Creek Alliance. Our organization, since 2002 has worked to restore, reveal and revitalize Newtown Creek, a five -- a four-mile waterway that has suffered from over 150 years of environmental degradation, abuse, and neglect.

Newtown Creek was designated a federal Superfund site in 2010 due to elevated levels of hazardous toxins within the sediments that originated from local industrial operations including National Grid's predecessor, Brooklyn Union Gas. We stand in strong opposition to this rate case.

And any -- any investment at the Greenpoint inner -- Energy Center that does not prioritize the cleanup of the site as well as a transition away from the storage of hazardous, Liquefied Natural Gas and processing of fracked gas.

Before diving into specifics about the Greenpoint Energy Center, I'd also like to address the Renewable Natural Gas or R.N.G. project, that National Grid runs at the Newtown Creek Wastewater Treatment Plant, as the R.N.G. project is mentioned numerous times within this ratepayers' proposal.

We are very concerned about National Grid seeking to expand R.N.G. to other facilities within New York City and are strongly opposed to any scenario in which ratepayers are helping to foot the bill of the construction, maintenance -- maintenance, operation, or expansion of R.N.G.

The Newtown Creek R.N.G. project has been a failed proof of concept to date, creating adverse impacts for the local community and climate emissions in the process. Originally scheduled for completion in January of 2016, the massive delays, which by all accounts seem to be the responsibility of National Grid, have spiraled out of control.

Less than two months after an eventual ribbon cutting that was held in June of 2023, that's already seven-and-a-half years behind schedule, the system went offline and has been flaring excess gas ever since including today.

While the project has been touted as visionary in a path towards meeting the C.L.C.P.A. goals, it has today contributed untold amounts of CO2 emissions because the plant does not just burn sewage methane when the R.N.G. project is offline but tons of organic waste that the city collects through the

brown bin program.

It's about 52,000 tons of excess organics in 22 -- 2022 alone. I raise this issue not just to highlight the negative environmental impact in carbon emissions, the seven-and-a-half-year delay and counting has had, but to caution against encouraging expansion and considering ratepayer funding of this technology.

We should be turning valuable organic waste into compost which can sequester carbon and in -- improve the health of our soils and not into a health hazardous commodity for a profit-driven corporation like National Grid.

There's another major project in my backyard that's referenced within the rate case we've heard a lot about and it's a significant environmental burden for local residents. The L.N.G. facility known as the Greenpoint Energy Center.

The previous operations at the facility have left significant amounts of contamination in both the local soils and waters. According to the State D.E.C., the site is contaminated by the following chemicals of concern.

Light hydrocarbons such as benzene,

toluene, ethylbenzene, and xylene, semi volatile organics including P.A.H.s, Polycyclic Aromatic Hydrocarbons, Polychlorinated Biphenyls, known as P.C.B.s within the groundwater and manufactured gas plant waste in the form of Nonaqueous Phase Liquid also known as NAPL below the groundwater table.

Prior to 2012, there were eleven separate environmental investigations at the site relating to potential underground plumes, groundwater contamination, and subsurface and surface soil contamination from previous operations and the demolition of structures.

The company even suspended use of a baseball field following a 2010 investigation of the area and interim remedial measures were overseen by the State D.E.C. in 2005, 2006 and 2007. As of 2023, New York State is still reviewing draft versions of a remedial investigation plan.

The company is one of the original potentially res party -- potential responsible parties to the E.P.A. led Superfund Investigation of Newtown Creek where data collected shows the sediments off the shore of the facility to be some of the most contaminated in the entire site for P.A.H.s.

Remnants of coal tar that were processed at this facility still bubble up to the surface waters of the turning basin during low tide events.

A.L.J. LEARY: Okay. You need to wrap up now.

MR. ELKINS: Okay. This is an issue that affects my community.

A.L.J. LEARY: So --

MR. ELKINS: This contamination --

A.L.J. LEARY: Does everybody see how much time, I'm just --

MR. ELKINS: This contamination --

A.L.J. LEARY: I hear you.

MR. ELKINS: -- has been in our community for over a 100 years.

A.L.J. LEARY: I hear you.

MR. ELKINS: It literally bubbles up from the creek. Can I just have 30 more seconds to finish?

A.L.J. LEARY: Sure, sure.

THE AUDIENCE: Let him finish.

MR. ELKINS: Jesus. Okay.

A.L.J. LEARY: (unintelligible).

MR. ELKINS: In summary, if National Grid were proposing a transition of this 110-acre site to one that was generating cleaner, renewable energy that would be a different discussion. They have a proven record of not doing successful operations and that would be a different conversation if they had.

But the fact of the matter is this, National Grid has poisoned Greenpoint. They've poisoned Newtown Creek. And they continue to drive excess CO2 emissions through a botched R.N.G. project. Simply put, they do not have a track record that merits large scale investments of any kind, especially ratepayer monies into fossil fuel-based projects, as such the P.S.C. should deny the request. Thank you.

A.L.J. LEARY: Thank you. So Joseph -- excuse me, Joseph Therrien. Jeanne Bergman, you are on deck. I just want to tell everybody I have a lot of people that need to speak. We need to leave at a specific time. Even if I can't get to you, we have to leave, so please be kind to your fellow participants. Three minutes is a -- is plenty of time. So go ahead. You're on.

MR. THERRIEN: Good evening, I am Joseph Therrien, T-H-E-R-R-I-E-N. But to my friends and fellow sociopaths, I'm better known as Dr. Frackenstein, F-R-A-C-K-E-N-S-T-E-I-N. I live in Brooklyn and I'm very interested in this issue.

A.L.J. LEARY: Okay.

MR. THERRIEN: First, I would like to commend National Grid for prioritizing the needs of everyday folks like myself, a greedy madman, deeply invested in the fossil fuel industry, who is completely ignoring the reality of climate change as well as ignoring the health and wellbeing of the vast majority of New Yorkers.

It wasn't that long ago when I thought New York was getting too expensive for a pro fossil fuel supervillain such as myself. But I truly believe that if National Grid implements these rate hikes and effectively steals $3.8 billion from everyday New Yorkers, investors and shareholders like myself stand to make obscene amounts of money and for that National Grid, you have my sincere thanks.

With your help, we can pull this off and hoodwink an entire city into investing in a gas infrastructure that will poison the earth and

everyone living here for decades to come. Now, I'm obviously a God-fearing man, so I'd like to leave National Grid with a prayer.

National Grid, I pray you have the strength to continue your campaign to ignore the voices of the residents of this city as well as ignoring climate science and any modicum of common sense or basic decency and continue to prioritize profits over people.

As a wise investor once told me people will pay to be poisoned because we will make them. You are truly evil geniuses and I salute you.

A.L.J. LEARY: Ms. Bergman. Sebastian -- Sebastian you're up next.

MS. BERGMAN: Thank you, Your Honors. My name is Jeanne Bergman, B-E-R-G-M-A-N. I'm here to speak against the proposed National Grid rate hikes and the dangerous and unnecessary infrastructure and facilities that they are asking us to pay for.

More importantly, however, I'm here to urge the Public Service Commission and I'm sorry that none of them are here to step up and fulfill their mandate which extends beyond the mantra of safety and

reliability.

The P.S.C. is required and this is on -- in the law to formulate and carry out long range programs with economy, efficiency and care for the public safety, the preservation of environmental values and the conservation of natural resources. Yet, year after year, one utility after another submits dense arcane proposals to the P.S.C. seeking cost recovery from -- from customers for capital investments that they have typically already broken ground on.

They make those investments not because they are necessary for the safety or reliability of the systems, but because extending more capital bumps up the rate base against which the return on equity is based and therefore, increases the profit to shareholders and executive salaries in turn.

The role of the P.S.C. and the Staff of the Department of Public Service, in all of these rate cases, has typically been to approve them pending some minor decreases in the rate hikes requested and some small changes to the proposed capital expenditures. Most of the items on the

utility's wish -- wish list are granted.

There is no evident concern with the preservation of environmental values and the conservation of natural resources at all and certainly not on the part of national -- National Grid regardless of what Phil Decicco said.

And there is certainly no alignment of their energy systems with New York C.L.C.P.A., the Climate Leadership and Community Protection Act, that legally mandates emission limits. On the contrary, the P.S.C. seems to resolutely ignore the context within which it gently regulates utilities, operating as if the conditions extend in the early 20th Century which spawned the so-called regulatory compact are unchanged.

But everything has changed. The climate crisis is here with fire, floods, drought and famine. We know, beyond a shadow of a doubt that fossil fuels like the fracked gas that National Grid is pumping into our homes is what is rapidly making this planet unlivable.

We know that black and brown people in low income communities suffer first and worst from the disasters. We know that we must stop burning

fossil fuels as quickly as possible. Anything else is irrational. There can be no safety and no reliability on a burned-out planet.

But there are other changes that bring hope. Among these are new technologies like thermal energy networks, district geothermal systems, efficient electric appliances and energy storage that can be quickly implemented to replace gas.

These technologies need to use the existing and I see you back there, my brothers and sisters, existing union labor force with their skills and tens of thousands more workers for the good, green union jobs that they would generate.

Those systems could be a lifeline for labor and for the obsolete gas companies who need to be shut down now. The Public Service Commission charged with regulating public services and with serving the public must step up and facilitate the transition away from gas and towards affordable, healthy, renewable energy.

You, if you were here, must not extend the lifetime of the gas system by allowing leak prone pipes to be replaced with other leak prone pipes. You must not permit the build out of the unnecessary

287 Maspeth Facility raising the rates of low income New Yorkers solely for investor profits.

And you must drive the utilities you re -- regulate to -- to design and build with union labor, the thermal energy networks. You must protect us, the residents of New York and not the investor owned utilities that prey on us. Thank you.

A.L.J. LEARY: Sebastian Bouknight.

MR. BOUKNIGHT: Bouknight.

A.L.J. LEARY: Bouknight?

MR. BOUKNIGHT: Yeah.

A.L.J. LEARY: Okay.

MR. BOUKNIGHT: You're trying to upset me.

A.L.J. LEARY: Yeah, sorry. Piper Werle, you are on deck.

MR. BOUKNIGHT: Can I go?

A.L.J. LEARY: Oh, please do.

MR. BOUKNIGHT: All right. My name is Sebastian Bouknight, B-O-U-K-N-I-G-H-T. I work with community gardeners and public space land stewards around the city. I've been working on bringing solar power to some of these spaces myself, so I've seen a little bit of this, but I'm also been involved with

the New York -- the No North Brooklyn Pipeline coalition for a while, so I'm bringing this from my perspective, not perspective of.

I just, in -- in listening to Mr. -- National Grid, the suit, not the madman. Well, I don't know. Listening to them speak, I -- I was really struck in the way that language is sort of used by these companies as a smokescreen which, my friend back there commented on before.

It seems like everything they say is exactly the opposite of what they actually mean. And they're very good at doing that. And I think, you know, a lot of folks here have been listening for a while and -- and have -- have come to very much be able to see through that, but I think the public generally maybe is not always, you know, doesn't have that, maybe that experience.

So I just wanted to say, just like point out some of those things which I heard, which were kind of striking to me, like they were kept talking about how National Grid is trying to help poor communities, you know, whether it's through public programs, whether it's through giving some money to some charter schools in the neighborhood.

Whether it's, you know, funding like a little league team or something like that. But at the same time, they're trying to raise everybody's rates to make it less affordable. They're also, at the same time, contributing to this global disaster that is climate change, which is going to hurt poor communities first.

They also keep -- he also kept talking about how National Grid is trying to invest in infrastructure that will build resilience and reliancy (sic). At the same time, they are putting all of that money that we will potentially be paying for them into infrastructure that will lock us into fossil fuels for the next 80 years and push us further off the cliff of climate chaos into a place where our cities are battered, and demolished, and destroyed.

And that, to me, doesn't sound like resilience at all. Also, if they continue to build out the Greenpoint Energy Center, is that what it's called? The Greenpoint Energy Center, it's right on the Newtown Creek. It's a body of water. It is prone to flooding. It is a crazy idea to me that -- that that could be happening there.

They also keep, you know, he was talking about, we have options where we can refer our clients to electrification which is a crazy thing to me. It's like, well, if you're referring clients to electrification, why aren't you just doing it yourself or putting money into that, or realizing that your business model is an obsolete one.

And passing off, you know, the -- the energy utility into public control. So yeah, I -- it's -- I urge the Public Service Commission to deny National Grid this rate hike, and to deny them the ability to expand the Greenpoint Energy Center to suit their interests, but rather give that land back to the people, and let us invest our money in our future, not theirs. Thank you. [Applause]

A.L.J. LEARY: Piper Werle -- Werle.

MS. WERLE: Werle.

A.L.J. LEARY: Werle and Kier Blake, you are on deck.

MS. WERLE: Thank you for hosting this public hearing. My name is Piper Werle, W-E-R-L-E, rhymes with swirly. I'm a National Grid customer, not by choice. It's a fact that the use of fossil fuels is causing devastating and preventable damage

to people's lives and our planet.

It's also a fact that one of my dad's first jobs was working on construction of a large coal fired power plant amongst other fossil fuel projects throughout his career. I understand that the lights need to be kept on, but I also understand that they don't need to be kept on at this cost.

Especially when personnel that build and maintain fossil fuel systems can use the same skills to maintain renewable solutions like thermal energy networks. This transition to renewables needs complete focus and immediate attention because lives are at stake.

Recently, about a month-and-a-half ago, I found myself saying, I'm lucky to not live in a basement because of dangerous flooding during New York's state of emergency with Governor -- which Governor Kathy Hochul says is the new normal.

This came a mere two years after Hurricane Ida, which killed 13 people in New York City, mostly living in flooded basement apartments. People living close to me in Queens were among those killed and that included a toddler.

We're in a state of emergency. And

for some people this is an inconvenience, including probably those that would profit off of this rate hike. For some people this is an inconvenience, and for others it is life or death. Extreme weather events are more frequent and people of color and economically disinvested communities who contribute the least are affected the most.

Imposing a rate hike that asks lower-income people to pay to expand gas infrastructure that actively harms them the most is unacceptable. Instead, National Grid should be putting their ample resources towards renewable energy like thermal energy networks, which again, requires skill sets that many fossil fuel workers currently have.

There's a huge potential for good green union jobs. The solutions must be people centered and sustainable. So all decision-makers who may or may not be here, but I guess we'll be reading this later have an opportunity to make an immediate impact on the lives of National Grid customers by not raising their utility bills, which are already hard to pay.

And also have a lasting influence in creating a livable and more just future for future

generations. Instead of fattening the pockets of National Grid shareholders, I beg you and urge you to make a choice that has life-giving impact and deny this rate hike. Thank you.

A.L.J. LEARY: Kier Blake and Katherine Thompson, you're on deck.

MS. BLAKE: So hello, my name is Kier Blake, and my last name is B-L-A-K-E. So dear National Grid, my name is Kier Blake, and I am a resident of Brooklyn who was not consented when you built a pipeline in my neighborhood where I live.

Your representative, Mr. Decicco mentions that part of the reason you're proposing more money in your proposal is to make your infrastructure quote, unquote, safer, though you promised us safety when you put it -- when you put the pipeline in.

But then now your plan includes almost $10 million per mile of leak prone pipe infrastructure and reinforcements in my neighborhood. You say that you're interested in supporting the Climate Leadership and Community Protection Act, the C.L.C.P.A.

But you threw away your proposal to

support thermal energy networks for which we can provide additional testimony in written form. You claimed minimal feasibility and limited options when we did that same exact investigation and found so much opportunity. And I want to say that I see the labor and the union members that are standing outside and with us today, that same personnel that can install and maintain fossil fuel systems can use their same skills to install and maintain thermal energy networks.

It's the exact same skill set. From John Murphy, who is also an international representative of the New York State Pipe Trades Association, that rep -- represents 24,000 plumbers, steam fitters, sprinkler fitters, and HVAC technicians across New York State. And this is in city limits.

You also said that you mentioned, especially in your equity and energy summits, that you reach out to communities. But when asked who you're reaching out to, you could not name a single group. Perhaps these are the very honorable schools, like Crystal Rain, that have benefited from your resources.

But I urge you to consider that these same communities are all -- that you're talking about are also the same communities that have been contaminated on which your headquarters are -- are situated on. Well, that could be hundreds of acres of play space and park that could have been used by the Brooklyn communities than to just wave pride flags in June or pass out relief to those same disadvantaged communities that you plan to build under.

So why not imagine better? This pipeline, of course, affects North Brooklyn. And I love that we have so much representative -- representation, but I also want to stress that the very same community is also at the foot of the pipeline. In Flatbush, also where you've established and also proposed a lot of replacements and reinforcements are also here with us today.

And I wanted to speak to represent them as well. In the saying that we do not wish to continue being entrapped. We are already struggling. We are those disadvantaged communities and fossil fuel infrastructure that will remain until 2080.

And so we just encourage both the

P.S.C., all the attorneys here today, and all of you all here today to continue fighting and -- and I hope to continue and come back and say thank you for just supporting and protecting our communities as well.

Thank you so much.

A.L.J. LEARY: Thank you. Katherine Thompson, Elliot Thompson, you're on deck.

MS. THOMPSON: Oh, I think he had to leave, so.

A.L.J. LEARY: Oh, he did? Okay.

MS. THOMPSON: Katherine Thompson, K-A-T-H-E-R-I-N-E, T-H --

THE REPORTER: Can you go a little closer? I can't hear you.

MS. THOMPSON: Go closer to that?

THE REPORTER: A little. Yes.

A.L.J. LECAKES: The mic underneath is the one that picks up over here.

MS. THOMPSON: Okay. Can you hear me now?

THE REPORTER: Yes.

MS. THOMPSON: Okay. Katherine, K-A-T-H-E-R-I-N-E, Thompson, T-H-O-M-P-S-O-N. Thank you for hearing testimony. I'm here with Sane Energy and

the No North Brooklyn Pipeline Alliance. I moved to Greenpoint in 1996 and raised three children there.

To be a resident of Greenpoint means you have to get involved with community issues because we have so many issues to contend with, with toxic spills, carcinogenic chemicals, asthma, auto-immune disorders, overdevelopment, lack of open space, which I am also the president of the Friends of Bushwick Inlet Park, which is a very polluted promised park to the Brooklyn community that I fight for every day.

But now, we are -- we have to contend with weather events nearly every rainstorm, I was bailing out my basement not too long ago with others in the flash flood. And so the climate emergency is here, and -- and so in 2023, National Grid, which is a U.K.-based corporation doing business as a local utility here in New York, proposed to New York State to raise our monthly bills, which would raise an average residential customer bill about $30 a month to pay for its toxic frack gas system that harms all New Yorkers and -- and globally, it harms everybody.

And it breaks our climate law, the C.L.C.P.A. I'm -- I'm here to testify to ask and

tell New York State, the Public Service Commission, wherever you may be, not to allow this terrible hate -- rate hike because we don't want to pay for more fossil fuel infrastructure. And we know that National Grid's business model is on building infrastructure. That's how they make money. They don't make money by selling gas.

They make money by building stuff. Unless they build, they will not, you know, make money for their ratepayers, their stakeholders, whatever. Anyways, in 2020, I joined along with thousands of my neighbors, North Brooklyn, the No North Brooklyn Pipeline Alliance to fight against the M.R.I. fracked gas pipeline, permanent fossil fuel infrastructure because it's racist. It's harmful to the health of residents and globally climate change is here and we have very little time left to change our course for the future of all of the earth.

To help with the fight, I joined the rate case and witnessed firsthand how important it is for the community that is the public to be involved with decision-making on how to invest public money on energy infrastructure and the future of fossil fuel dependence.

Well, you know, what was spoken about earlier is, it's, you go to a -- you join a rate case and it's a, you know, with the Public Service Commission yet it is private and decisions are made behind closed doors and all of -- it's very hard to get involved. It's very complicated and I don't think it's very public.

And so when we did fight last year, we demanded that independent experts study of the L.N.G., liquefied natural gas vaporizers at the National Grid facility, before investing tens of millions of dollars in them to investigate. And the findings showed that they -- that what the National Grid proposed that they were needed for reliability was not true.

It was a lie. It was just a lie that was -- and unless we had been in that case, unless we had been pushing back, they would have gotten away with a rate hike to pay for this, you know, unnecessary L.N.G. vaporizers. Not only would it spend money, but it would expand and extend the use of the fossil fuel infrastructure, which we know is causing us harm, causing the, you know, climate emergency.

So basically, we cannot trust them. We demand that we retire and don't replace the gas infrastructure. $3.8 million for National Grid to invest in their outdated gas system will keep us burning fossil fuels into the 2080s.

And we want to retire the Greenpoint Energy Center at 287 Maspeth Avenue, the 110-acre property. And by the way, my son, Elliot, who had to leave go to work, who couldn't testify, he played little league there. He played. We brought him to that spot where they closed it down because it was so contaminated. It's actually bad for children.

And basically, our only hope of meeting the C.L.P. -- C.P.A.'s goals is if we invest in thermal energy networks. That is the truth. We need to lay the -- and as Kier so adequately, you know, explained, it's the same -- it's the same technology. The steam pipe-fitters union is fully behind this transition.

Instead of laying more leak prone, more gas -- gas pipes. We need to be laying infrastructure to move ourselves into this fantastic, hopefully you know, transformative energy system and -- and we have to do it right away. And I guess

that's it. Thank you.

A.L.J. LEARY: Thank you.

A.L.J. LECAKES: Thank you. And Ann Treesa Joy and Izzy Militello, you're on deck.

MS. JOY: Hi, I'm Ann Treesa Joy. That's A-N-N space T-R-E-E-S-A, last name J-O-Y. Thank you for being here. Thank you for hearing us. I feel very angry right now as I'm sure all of you do, at the hypocrisy of this whole event.

The hypocrisy of the fact that there's even a public hearing happening still where we're only given three minutes to talk which you specifically said, where you doubt to know nothing new will be said. And that's just the thing. Nothing new has been said.

We have been saying the same God damn thing over and fucking over and we do not want it. We don't want it. This is killing lives, we don't want it. And if this is a public hearing, and we're -- the public is fucking talking, we're saying no. Listen to us.

And Mr. D with a small dick energy, with a -- and National Grid, you have the power. You all have the power to choose to do the right thing.

You have the power to choose to do the right thing. And you know, I know you know you're not doing the right thing. Choose good. Choose good.

Say no, no, no to National Grid. No to fossil fuels. We don't want it.

A.L.J. LEARY: Well, that is good. Izzy Militello and Hennessy Gorkha?

MS. GARCIA: Garcia.

A.L.J. LEARY: Oh, Garcia. Thank you.

MS. MILITELLO: Okay. I don't know where a good place is to stand. Thank you everybody. My name is Izzy. I'm a high school student. I'm 16 years old. I'm here with Sixth Street Community Center. We're a teen climate justice program and we're partnering here today with No North Brooklyn Pipeline. So I'm very excited to speak with you all.

I'm going to talk about this and why this affects me personally. On September 29th, we saw one of New York City's largest floods in decades. Living here in Brooklyn, I saw countless videos of floods in areas that I knew completely flooded. One of my closest friend's basements was flooded. It wasn't even the first time.

And so thankfully, my best friend's

basement was not flooded as their family was worried about it because my best friend's 90-year-old grandparents live in that basement. They were thankfully okay. But I'm worried about next time, because this is only going to be getting worse and more frequent.

If we don't make the sustainable changes that we need to, New York is going to keep suffering. Many of us, and I think most of us have to commute to different boroughs to work for -- to go to work or school. So many migrants, as we've said, live in basement apartments, which are affected by the flooding scarily.

It is vital to acknowledge that while some can fight for climate justice out of awareness and empathy, some fight for climate justice because they have to for their own safety and the safety of their communities. As one of the many L.G.B.T.Q. youth in New York City, the climate crisis is A personal issue to me.

As we know, New York City homelessness is a huge problem, and throughout the U.S., L.G.B.T.Q. youth are 120 percent more likely to experience homelessness than non-L.G.B.T.Q. youth.

This is alarming. Because those experiencing homelessness are impacted by climate change on a massive level.

Having being more exposed to extreme temperatures and powerful storms, not to mention having no escape from poor or potentially dangerous air quality. I know I wasn't the only one that saw when the sky turned orange from the Canada wild fires. It was dangerous just to breathe outside.

This is the climate crisis happening right now in our city. We cannot solve this issue if we continue to pollute. That's why we demand to retire and don't replace gas infrastructure and retire Greenpoint Energy Center at 287 Maspeth Avenue in Brooklyn.

Fracking causes major releases of methane with even higher concentrations in intensive fracking regions. That harms the nearby communities. That's why I am here today to oppose National Grid's $3.8 billion investment for fracked gas infrastructure.

To ask that we protect not only me and my community, but all communities in New York City and beyond. Thank you.

A.L.J. LEARY: Hennessy Garcia, Gabrielle Roseman, you're on deck.

MS. GARCIA: Hi, I'm Hennessy. I'm with Sixth Street Community Center, and I'm one of the co-facilitators of the Teen Climate Justice Program, and I'm also with No North Brooklyn Pipeline Alliance. As a member of the youth, National Grid do us all a favor and come back to reality with the rest of us.

Last I checked in June, we saw orange skies. In September, we saw flash floodings. Also, in September, 70,000 people marched for the demand to end fossil fuels. We will not fall for the greenwashing and gaslighting statements from National Grid today.

You said earlier today that you are compliance -- in compliance with the C.L.C.P.A. You are not. New York is supposed to get off fossil fuels by 2050 to mitigate climate disaster. Yet you want 3.8 billion to invest in your outdated gas system that would keep burning fossil fuels into 2080s. Make that make sense.

How are you compliant when we have the Greenpoint Energy Facility at 287 Maspeth Avenue?

This facility houses liquefied natural gas. We are supposed to be transitioning to electrifying New York and not staying with fossil fuels.

This is stated in the C.L.C.P.A. and the billed public renewables. You are proposing a rate hike and increasing our bills by about $30. National Grid, on top of the climate crisis, I don't know if you're aware, but we also are in a housing and a rent crisis.

You do not pay my rent, you do not pay my utilities, and I refuse to pay for something I did not consent to wanting. Lastly, National Grid, we shut down phase 5 of your pipeline in North Brooklyn, and we will shut down your rate hike.

A.L.J. LEARY: Gabrielle Roseman. And James Ware, you're on deck.

MS. ROSEMAN: Hello, my name is Gabrielle Roseman. I'm 16 and I'm a high school student and I go to H.B.H.S. I'm here on behalf of Sixth Street Community Center and I live in Sheepshead Bay with my father. Sheepshead Bay is directly connected to the Atlantic Ocean, giving it a major risk of flooding in as little as the next 30 years.

I worry that his life and many other lives will be at stake if we don't do something. My dad has a heart monitor which needs electricity to run. I can assure you that there are thousands of New Yorkers who are allowing electricity for life preserving necessities.

To get these life preserving necessities, we do not need fracked gas. Over 1.5 million New Yorkers live in flood zones. What are you going to do once their homes are flooded and people are dying? Raising the price for utilities is not the solution, and it is supposedly more ecofriendly alternative than National Grid's showing us.

This is not true. It's not. There's other alternatives that make way more sense than paying $30 for something that's just going trash our environment, but. I lived with my mom who was low income and we couldn't pay for our electric bill and had a week of no electricity.

There are thousands of people who have similar situations or worse. How could you say you are helping people who are lower income, yet raise the bill by $30? This is a climate crisis happening

right now in our city. We cannot solve this issue if we continue to pollute.

Fracking causes major releases of methane, with even higher concentrations in intense fracking regions. This harms nearby communities that -- this is why I'm here today. I oppose National Grid's $3.8 billion investment for fracked gas infrastructure and I hope you do as well.

A.L.J. LEARY: James Ware. And Aine Pearson, you're on deck.

MR. WARE: Hi, my name is James Ware, W-A-R-E. So I moved to New York about a year-and-a-half ago. I moved as an energy professional working in renewable energy and renewable energy development. And -- and seeing kind of this rate case unfold it -- it kind of feels like very strange to me for being -- being a U.K. resident.

I mean, I'm sure all -- I'm sure some of my pension is -- is tied up in -- in the result of this case, but I do not care. I care about the planet and I care about this global emissions problem that we have. I hear this -- this justice washing from National Grid and I hear them putting a -- a dangerous chemical inside people's homes that is

killing them.

And then they're complaining about leaks and I've -- I've read many a report where leaks are valuable to these gas companies. So they're asking us to pay for them and then they get additional revenue out of the -- the gas that is in the system.

We hear about the -- the support to the schools and the local communities and -- and they're putting residents, they're putting students into these schools. I guarantee that that money will come back through the rate base and will come back in, out of the pockets of the residents.

Like, working in renewable energy development, I -- I've actually working with the P.S.C. at the moment on the New York Harbor P.P.T.N. where they're trying to put 4.7 gig of offshore renewable energy into the harbor.

And one of the biggest problems with this, and I think what they -- what it's basically going to come down to is a land game. And it's who can get the cheapest land in the best location. So we need to stop these energy companies sitting on and hoarding this -- this -- this land.

And -- and make it useful and make it available for the public good. So please like, say no to -- to -- to the rate hike and to the -- the Greenpoint Energy Center, the Maspeth 2 -- 28 -- 278? 287. Thank you very much.

A.L.J. LEARY: Thank you. Ms. Pearson and Judith Can -- Canepa, you're on deck.

MS. PEARSON: Hello, my name is Aine, A-I-N-E Pearson, P-E-A-R-S-O-N. And I'm here to speak from the Brooklyn College Sustainability Program. We're situated within CUNY, New York's Public University, and we closely study the impact of climate change and energy -- energy policy on New Yorkers.

The most generous interpretation of this rate case is to view it as a critical lack of imagination on behalf of National -- National Grid and the city in respect to a transition for green energy. The Central National Grid site in Greenpoint is located on a historic floodplain which is uniquely vulnerable to the kinds of flooding and severe storm events which are exacerbated by fossil fuel use.

Further, centralized gas infrastructure is inherently prone to breakdown and

stoppages in times of crisis. The U.S.'s colony of Puerto Rico has learned this lesson last year and is investing in decentralized renewable systems accordingly.

Again, the literature is clear. New York City will face a drastically higher amount of increasingly severe flooding and storm events in the coming 50 years. The system which this case -- which this rate case will fund is both threatened by and accelerates this kind of harmful events. And no amount of capital investment in fossil fuel infrastructure will change that fact.

An ungenerous interpretation of the rate case is that it is a money grab attempted by an institution within a dying fossil fuel industry. You may view the environment -- environmentalists and activists who oppose this plan as emotional and irrational, but the truth is that we see the future as clearly.

Fossil fuels will not serve New York City through the next half century. Any further investment in this destructive system is a mistake that we will not accept. The history of fossil fuel infrastructure bloomed here, and in Greenpoint

specifically in the 1880s when Standard Oil consolidated ownership of the many oil refineries that are located along the creek, and it will decompose there in the 2020s through our imagination and tenacity. Thank you.

A.L.J. LEARY: Judith -- Judith Canepa and Ash Drury, you're on deck.

MS. CANEPA: Thank you. My name is Judith Canepa, C-A-N-E-P-A or J.K. And thank you for this opportunity. I'm a proud member of Sane Energy Project and the No North Brooklyn Pipeline. And my community, I live in (unintelligible). I live across the river. And we've been impacted by rate damaging big time.

We've had health assaults. Big time. Our very close neighbor, Con Edison, has been gassing and poisoning us for decades. Our elders suffer from heart disease. Our children breathe through asthma inhalers. I have C.O.P.D.

Our utility has profited handsomely, handsomely off of our captive need for warmth and cooking. But I work all over the city. I work everywhere. I have seen the seniors that I have advocated for also choking and gasping, trying to get

enough money together to pay for their rent, their utilities, and food.

Staten Island, Brooklyn, Southeast Queens, that's just where I work, all held in the grip of National Grid. I want to talk for a minute about some of their -- their vision of a kinder, gentler, transformed utility. Here's some of the things that they've been telling us tonight.

They speak of alternatives to fossil fuels. Yes, they want to get us off fossil fuels. How can they do that? Renewable natural gas from the intense, unspeakable suffering of animals in factory farms or from sewage, or even for a minute there, from our compost.

Well, it's all methane. Methane is methane. 86 times worse than carbon dioxide trapping heat over 20 years. Well, that's 20 years. In the shorter term, even worse. That's putting a blanket, a very scary blanket over an already overheated world.

They talk about hydrogen, the shell game of hydrogen, a blend that puts to a lie the claim of retiring leak prone pipe or of course, you have to retire a pipe. If you're going to have to

lay a new pipe to carry a gas that's one atom. That's the hydrogen atom.

The hydrogen molecule is two hydrogen atoms together. That's the smallest you can get in the universe, in the entire universe. How are you going to hold that in a pipe? Well, you certainly have to lay a new pipe and then cross your fingers.

It's corrosive, it's leaky and it's energy intensive. That's another one of their solutions. They say that they stopped marketing gas. Well, of course, they have to stop marketing gas. We caught them marketing gas with ratepayer money. We caught them in the act. Direct ad, direct marketing, advertisements.

They realize they can't get away with it because everybody in this room would be subjected to the use of your money to market their gas. So they're going to stop. They claim that they care about the low-income neighbors in Brooklyn, where they lay pipe.

But they deliberately laid the North Brooklyn pipeline. What do they call it? The Metropolitan Reliability Infrastructure. They deliberately chose the most severely impacted

communities in New York City. They chose to start in Brownsville. Brownsville, which has the highest asthma rate in the city. It's one of the highest in the country. Those kids are on inhalers too.

Those elders with heart disease, why would any company choose to add to the burden of those children and those elders dying early of C.O.P.D., of heart disease? Improving digital access in their schools, that doesn't cut it. Job training for sick kids with no future, that doesn't cut it.

And if they truly, truly want to become more energy efficient, how are they going to raise the bottom line? How are they going to feed their executives in London? How are they going to satisfy their investors? Well, they don't intend to become more energy efficient. They intend to grab $3.8 billion from the Public Service Commission, passing it on to us.

No. We say no. Close 287 Maspeth, shut that door. Lock it. Tear the building down and we'll take care of it. We'll take it from there. Thank you very much.

A.L.J. LEARY: Ash Drury, Chai Smith, you are on deck. I'm going to ask everyone

remaining, we have too many people remaining for the time we have left. I am begging you to be kind to the people who also want to speak and keep your comments to three minutes.

Much appreciated.

MR. DRURY: Ash had to leave early. I will be speaking on their behalf. My name is Ash Drury, last name D-R-U-R-Y. Hello, my name is Ash and I am a compost worker with B.K. ROT, an environmental justice center compost non-profit based in North Brooklyn. Our neighborhoods and communities, we know what environmental racism and classism looks like.

Asthma rates, blood lead poisoning, urban heat island effect, and storm flooding all make it very clear that climate change and capitalist accumulation create sacrifice zones like Bushwick and Greenpoint.

More than 150 years into North able as frontline Brooklyn being abused as a frontline fossil fuel infrastructure. Enough is enough. National Grid is one of many companies attempting to profit off throwing oil on a forest fire.

In the sixth great extinction,

National Grid tells us we need more gas, more money, more pay. $3.8 billion of our hard-earned money to spread the empire of gas is to handcuff ourselves and give the key to our jailer. We can't afford $30 more, and we definitely can't afford the warmer, dirtier atmosphere it would pay for.

No rate hike. National Grid out of Brooklyn by 2030. Community control of the land. A British corporation, National Grid is a colonial empire's last breath. The record of lies to community members lies to the P.S.C., secret pipeline building and other sites of contamination are evidence that National Grid does not care about the people it profits off.

National Grid gives pennies to small programs like the Brooklyn Botanical Garden and school programs as an attempt to greenwash, to bribe us to smile as the water rises. Shut it down.

A.L.J. LEARY: Chai Smith, Tamara Wyndham, you're on deck.

MS. SMITH: Hi, J.K. knew how to figure it out, you just got to talk into the mic. My name is Chai Smith, that's S-M-I-T-H. And I'm here today to stand against the National Grid's rate hike

and against the existence of 287 Maspeth. I am a born and raised New Yorker. I work with No North Brooklyn Pipeline, but I'm here today representing myself, a human being whose community's future is being threatened.

I have been a customer of National Grid. I've stopped. I will be again when I inevitably move. I don't get a choice in where I get my energy. $30 more is ridiculous. You should have been collecting this money. Where did it all go? You say you want -- you hold this hearing because you want to hear our comments, but you don't even hire a sound guy.

I'm sorry. Are you short on cash, National Grid? You should ask your C.E.O. -- C.E.O. daddy, John Pettigrew, who pockets over 6 billion quid a year. Another colonizer. I don't stand against National Grid's employees. They are my neighbors.

I simply believe we should all have jobs that work for companies that do not threaten each other's futures. I talked to many of your customers on the streets. Nearly none of them actually knew that they were going to receive a rate

hike, nonetheless such a large one.

This hearing wasn't publicized enough considering the toll it will take to many people's monthly bills and futures. You say, we are very focused on disadvantaged communities. You do a lot of outreach. I hear. Outreach, right. To these communities to build poison lines under their homes.

You should help by getting Brooklyn unhooked from your poison system. I will always stand against dickheads who get rich off of poisoning land and poisoning families for profit. It's disgusting. I see National Grid. I see your get rich scheme who has no interest in a future where we exist.

The danger is imminent; let’s we work towards the greater future up ahead. My arms are for the earth, my heart is for the people. I mean, $30 more? Shut the front door.

A.L.J. LEARY: Tamara Wyndham and Michele Greenberg, you're on deck.

MS. WYNDHAM: My name is Tamara Wyndham, W-Y-N-D-H-A-M. We have been fighting this tooth and nail from the beginning. Fracked gas is poisonous. Fracked gas is flammable. Fracked gas

pipelines leak. Fracked gas pipelines can explode. Brooklyn residents are being asked to pay for something that could kill them.

The earth is dying. This is a climate crisis. Why are you building a fracked gas pipeline? No to fracking. No to -- no to pipelines. No to the hike. We won't pay for your pipeline and we are not going to stop fighting you.

A.L.J. LEARY: Michele -- Michele Greenberg and Kathryn LaMontagne, you're on deck.

MS. GREENBERG: Good evening. I'm Michele Greenberg, and I live near here in Brooklyn. I'm strongly opposed to any rake hike by National Grid with the goal of expanding or repairing their infrastructure.

Instead, New York City and State need to be working toward a transition away from dangerous and leaky gas systems, and towards energy sources that are both safer for city residents like us, and that help us to move our State and country out of the current climate catastrophe.

Everyone who has lived in New York City for the past six months to a year has been shocked to experience the most extreme heat in

recorded history. To see and choke on smoke from Canadian wildfires, which arrived here for the first time ever, and to watch previously unimaginable floodwaters shooting past our doors.

Climate change is no longer something we need to imagine. It's here now. To get out of this mess, National Grid's gas systems should be retired, not replaced. We need to move away from fracked gas energy and towards renewable energy.

This is clearly outlined under New York State law. The C.L.C.P.A. goals are to drastically reduce fossil fuel usage by 2030, and eliminate that usage completely by 2050. This cannot happen if we pay $3.8 billion for National Grid to invest in their gas system.

The Public Service Commission and the Governor must ensure that we meet the State climate law requirements and protect our residents and businesses. I urge the New York State Public Service Commission to reject any rate hikes for National Grid's fracked gas infrastructure.

Postpone investments in the Greenpoint Energy Center until an independent assessment is conducted and deny any investments in National Grid's

leak prone pipe program for any non-emergency repairs. This program guarantees that we'll still be burning and transporting gas in 2080. That is unacceptable.

The Commission must mandate a rapid transition to energy efficiency. Replacing dangerous gas pipelines with another gas pipeline is bad for everyone in the city. And is especially so for low income and communities of color that continue to be targeted for toxic projects.

We need to act now to ensure that we survive and thrive into the future. Thank you.

A.L.J. LEARY: Kathryn LaMontagne and Tohmi Barrett, you're on deck.

MS. LAMONTAGNE: Hi, Kathryn LaMontagne. Kathryn with a Y and no E and LaMontagne is L-A-M-O-N-T-A-G-N-E. Hi. Thanks for your serious consideration of our testimonies tonight. I'm here because I'm extremely concerned about the ramifications of National Grid's proposed rate increase for further investment in fossil fuel infrastructure in New York.

We all know that fossil fuels are the leading cause of climate catastrophe. And that

living in close proximity to these pipelines and power plants is extremely dangerous to human -- human health. The communities closest to National Grid's poisonous infrastructure are predominantly black and brown.

This infrastructure proposal is plainly racism. It is environmental racism. The fact that we have to say that these community's health should come before National Grid's bottom line is sick. We need to be leaving these dangerous extractive industries in the past.

We need to move forward to healthful and renewable power sources like thermal energy. In addition to the climate and health costs, approving this proposal, of approving this proposal, the average National Grid customer would take on an additional $360 a year. This is a lot of money that most of us just don't have. It is actually a lot of money for most people.

Please, please reject this proposal. Do not force us to pay for the nail National Grid wants to drive in our planet's coffin. Do not pay -- do not make us pay to poison ourselves, to poison our neighbors, to poison our Earth. Please choose like,

humanity, justice, just anything but this.

A.L.J. LEARY: Tohmi Barrett, Bonnie Loewenstein. Ms. Barrett is not here. Is that correct? Or you are here?

MS. BARRETT: Yes.

A.L.J. LEARY: Sorry.

MS. BARRETT: Hi, everybody. My name is Tohmi Barrett, B-A-R-R-E-T-T. I wasn't planning on making a statement, but I feel really inspired by others, and I showed up because I deeply care about this issue. I feel compelled to make a statement against this pipeline but in favor of human optimism.

I believe deeply in human ingenuity and I refuse to cede to the concept that humans are inherently destructive by our nature. The desire to heal our land and each other is alive within us all, clouded only by shadowy desires to generate and hoard monetary wealth at the expense of the only wealth that is truly regenerative, which is our Earth.

We have the capacity for great ingenuity that acts on synergy between people, plants, organisms and our Earth, as well as the ability to invest in a reciprocal future. We have the capacity to build energetic systems that are not

extractive, racist, and environmentally degrading if only we saw motivations beyond profit.

Changing our priorities will take great strength. Like addiction, it will take care and commitment to turn away from what's easy and indulgent, but ultimately damaging. I believe without a doubt that we are capable of moving beyond new sources, moving towards new sources of energy.

But it will only happen when we fully reject new investments into a broken and unsustainable future. There is not an inch on earth where it is ethical to scar it. If you saw the earth as our mother, our son, our daughter and ourselves, you would not settle for replacing one knife with another.

And we must say no. Thank you.

A.L.J. LEARY: Bonnie Loewenstein. Maya Ar -- Aronoff, you are on deck.

MS. LOEWENSTEIN: My name is Bonnie Loewenstein. L-O-E-W-E-N-S-T-E-I-N. I've lived in Brooklyn all my life, all of my life, and I've been an anti-fracking and climate activist on and off for many years. Thank you, Public Service Commission for holding this hearing.

I am speaking up for the community and for community and environmental health, for rate paying justice, and for climate sanity. I am speaking for my sons and my grandsons. I object to the outrageous bill hike of more than $30 a month that National Grid has requested. The company wants to -- wants it to pay for a huge renewal and expansion of its toxic fracked gas system.

This monstrous development would keep us from meeting the New York State law requiring getting off all fossil fuels by 2050. It further flies in the face of the climate catastrophe it has done so much to cause, while stealing $3.8 billion from us to drive profits.

The dangerous pipeline, the dangerous pipelines all need to be shut down and the gas power plants retired, paving the way for hugely expanding renewable energy. A prime example is the Greenpoint Energy Center. No half billion dollars to keep it going. We won't pay to be poisoned.

I urge the Public Service Commission to make the sane and just decision and deny this request.

A.L.J. LEARY: Maya Aronoff and Alex

Beauchamp, you're on deck.

MS. ARONOFF: Do I spell the names?

A.L.J. LEARY: Yeah, spell your last name.

MS. ARONOFF: Okay. Last name is P -- Ponton, P-O-N-T-O with a tilde, -N space, Aronoff, A-R-O-N-O-F-F as in Frank. Hi, everyone. So I'm actually not a resident of Brooklyn. I just moved in with a relative in North Jersey who's lived there for 40 years from Michigan because I'm going to law school in New York City.

Okay. So why am I up here talking about an issue affecting Brooklyn when I just got here and, you know, don't want to speak for y'all's neighborhood. Because the place I moved from is Detroit. And before that, I lived in Denver. Before that, I lived in El Paso. Before that, I was a consumer energy customer growing up in Michigan.

Okay. So I moved around a lot. What's the point? I get here two seconds later, it's still the same bullshit with a new zip code. I lived in a sacrifice zone in Detroit. And one of the biggest things I was up to for the last year there was testifying against rate increases for utility

companies who wanted communities to pay them to poison us.

And that's what I was doing in Denver. And that's what I was doing in El Paso. And that's what I'm going to be doing in Newark. And that's what I'm coming here as a neighbor to Brooklyn as a law student in New York City to say, again, same bullshit, different zip code.

So I have a lot to learn about Brooklyn and, you know, the specifics of the struggle that y'all are going through, but it really, it's crazy how the script is exactly the same of these billionaire utility corporations making billions in profits, begging low income and middle income people to pay for their own debts.

To pay for the same energy systems that are destroying our planet, destroying our homes, destroying our health, and is going to destroy our future and my generation, and to pay more money for it, when the cost of living is already insane and the cost of living, particularly in New York City, is absolutely like, just, I can't even put in words when I hear about the rates that, you know, my new family, I guess, are -- are paying.

And I'm very grateful to be living with a relative. So yeah, that's -- everybody's pretty much all said it. And the one more thing I'll say is that, it's really a trip to be a law student getting up here saying this because a lot of times the folks in power on these utility commissions will say, oh, well, you know, run for office.

Why don't you be on the utility commission one day? Why don't you, you know, be the person who does this while pitting labor, working class people against one another in order to invest in this bullshit? And I'm, guess I'll just close on this, we don't have time for us to get in these offices. Not that these offices are actually where the power to change things comes from.

It always comes from the communities standing up and saying not in our neighborhood, never in our neighborhood, and not in anybody's neighborhood. Shouldn't matter the zip code. Nobody should be paying to get poisoned. Please make the decisions now because my generation, otherwise we're -- we're not going to have time to get to those positions because we're going to be focused, as so many people are now already just on the basic day-to-

day survival of the floods and air pollution.

And one more thing I'll say until they tell me I have three minutes is up --.

A.L.J. LEARY: I'm telling you.

MS. ARONOFF: Oh, okay. Well, then I'll finish my sentence and I'll go. Is I have a lot of health issues. And back when I did live in sacrifice zones, I was constantly sick day after day after day after day. And so if this fracked gas is going through more sacrifice zones, this is -- this is not just a future thing, it's a daily thing, and it's only getting worse the longer we wait.

So thanks for having me as a guest in Brooklyn and yeah.

A.L.J. LEARY: Alex Beauchamp and Tim -- Timothy Kent, you're on deck. If I -- if you are on deck please come to the front row so you do not waste one second of time getting up here.

MR. BEAUCHAMP: Sorry. I'm Alex Beauchamp.

A.L.J. LEARY: Oh! Beauchamp?

MR. BEAUCHAMP: Yeah, Beauchamp is B-E-A-U-C-H-A-M-P evens though it looks like Beauchamp. I'm the Northeast Region Director at Food & Water

Watch, I'm here -- and I want to thank you for holding the public hearing and having the time for me to speak.

I'm here to urge Governor Hochul and the Public Service Commission to reject National Grid's rate hike. Look, everyone has said it over and over and over again tonight, but asking ratepayers to put a bunch of our money into more fossil fuel infrastructure is absurd.

And it's absurd for at least two reasons. One, we literally can't afford it, right? Utility rates are already unaffordable. We've lived through maybe two years of panicked headlines over and over and over again, we hear about inflation. And even in that environment, a 30 percent hike is crazy.

We just don't have 30 percent more money. We don't have 30 dollars more a month to pay. You can't just keep going up back and asking for more, and more, and more if you're the monopoly utility. So we know that that's what National Grid will do. The P.S.C. and Governor Hochul have to put a stop to it, stop the rate hike, we can't afford it.

We also, of course, can't afford to

keep building new fossil fuel infrastructure anywhere in the State, indeed anywhere in the world. You know, I live here in Brooklyn, just in Brooklyn, this fall, we suffered through historic extreme flooding. This summer, we choked on smoke-filled skies for the first time that I can remember as a New Yorker at least from -- from wildfires.

And we know that's the tip of the iceberg, right? It is going to get worse, even if we were actually getting off fossil fuels at the speed we need to and of course we are not. So we can't afford it and we -- we cannot keep building new fossil fuel infrastructure if we have any hope of meeting the goals of the C.L.C.P.A. or of avoiding climate catastrophe.

And by the way, the C.L.C.P.A. requires all State agencies including the P.S.C. to say whether something complies with the law. They seem to take that just not seriously at all, right? So now is the time to change that, Governor Hochul and the P.S.C. have to take that responsibility seriously.

It's impossible to say that building new fossil fuel infrastructure won't make it harder

to hit the goals. It makes it harder and it doesn't matter whether we're burning some other form of methane, we have to stop setting things on fire for energy and to keep us warm. We have to do it now.

And the company is not going to do it for us. We need Governor Hochul to act, we need the P.S.C. to act, thanks again.

A.L.J. LEARY: Timothy -- Timothy Kent.

MR. KENT: Yeah, K-E-N-T.

A.L.J. LEARY: K-E-N-T.

MR. KENT: Yeah.

A.L.J. LEARY: And Sarah Reed, you're on deck.

MR. KENT: Hello, my name is Tim. I'm a lifelong New Yorker and I volunteer with many of these groups. Thank you to Governor Hochul and the Public Service Commission for holding these hearings. Everyone has addressed the issue in the room. National Grid's creating it’s own existence, expanding the gas system, it is time to leave these outdated forms of energy in the past.

New York has always been a city that looks forward and sets ideals that others eventually

adopt. And it is an insult to us as ratepayers and taxpayers to pay more of our money to expand the system that we know is only digging holes in our climate. And if this hike is approved, it will not be long before National Grid comes back and asks us again once more to take more money from our pockets.

I would also like to say as an individual, in future hearings, both sides should have an opening statement as National Grid did, we talk about a hard three minutes that National Grid, you got like 15 minutes to basically just spread lies about what they're doing.

I would hope that anyone who feels that they had the public trust to have the title of judge would see how unfair a position that is. And thank you for your time, everyone.

A.L.J. LEARY: Sarah Reed. Phillip Opsasnick -- Opsansnick, you're on deck.

MS. REED: Thank you. My name is Sarah Orleans Reed. Sarah is spelled with an H, Orleans is spelled like New Orleans, and Reed is spelled R-E-E-D. I'm a resident of Brooklyn. And I'm here to ask the P.S.C. to reject the rate hike and to retire -- and to retire not replace fossil

fuel infrastructure.

And I also just want to thank everyone else who came here to testify tonight, means a lot to me and to my future kid who is doing this with me tonight. National Grid is asking to spend $4 billion on fossil fuel infrastructure. I'm asking you to reject the rate hike, which would cost ratepayers -- payers 30 more dollars per month by -- by March 2024, at a time when gas prices are already at an all-time high.

By 2019, nearly 20 percent of families in New York were already energy burdened according to the Mayor's Office of Sustainability. The fund for the City of New York found that in 2023, 50 percent of working-age New Yorkers do not earn enough to keep an apartment, access sufficient food and health care, and pay for transportation. This is up from 36 percent for -- in 2021.

So that's 50 percent just two years later, up from 36 percent, two years before. At a time like this, it would be a strange public policy decision by the P.S.C. to prioritize the revenue of the private UK-based company reported 300 million in annual profits over New Yorkers by allowing National

Grid to raise its rates.

It's an even more flood -- flawed policy decision when you consider that the fossil fuel infrastructure the National Grid would like to expand is what's causing unfathomable heat waves and toxic air pollution locally. It's so flawed that it should be against the law and it is.

The Department of Environment has rejected on several occasions, proposals to extend gas infrastructure on the grounds that doing so would be in violation of the Climate Leadership And Community Protection Act because the D.E.P. honored our climate law, the proposed site of the Astoria Energy gas plant is now slated to become a site for storage and distribution of clean offshore wind.

The P.S.C. has also been an important critic of National Grid's request for public dollars, as others here have pointed out recently voting to reject the request for 70 million in public money to construct L.N.G. vaporizers in North Brooklyn, after finding that the proposed vaporizers were not needed.

National Grid has a history of misrepresenting the need for their proposed projects with regard to energy needs. So I ask the Public

Service Commission to review their -- their request again with due scrutiny.

Finally, National Grid has a chance to stay in business by becoming a non-gas utility but right now they're blowing it. The Utility Thermal Energy Network and Jobs Act of 2022 opened the door to utilities to become providers of thermal services through neighborhood-scale heat pump networks but right now National Grid is doing a careless and incomplete job with the pilot that they proposed that was subsequently rejected in what appeared to be a deliberate effort to sabotage the idea of thermal energy networks. Please reject this rate hike. Thank you so much.

A.L.J. LEARY: Thank you. Phillip Opsasnick.

MR. OPSASNICK: Yeah.

A.L.J. LEARY: All right.

MR. OPSASNICK: Very impressive, yeah.

A.L.J. LEARY: Ash Wolfson is on deck.

MR. OPSASNICK: Good evening, all. And thank you for your time and your generosity and listening us to, and listening to us tonight. And thank you everyone who showed up this evening. My

name is Philip Opsasnick, I live in occupied Canarsie, Munsee, Lenape territory colloquially known as Bushwick, Brooklyn, where I am a National Grid customer.

I work as a professor of philosophy and ethics at Fordham University and as a member of Sane Energy Project. I'm also a proud member of the No North Brooklyn Pipeline Alliance and stand in vehement opposition to the rate hike as it has been proposed. I was also at the afternoon hearing.

So I had two different opportunities to see the presentation, which for some reason, were different presentations than the night -- the evening one and the afternoon one. But in the presentation in both of those they stated that their second priority was to quote, support the clean energy transition, and advancing the goals and the C.L.C.P.A, unquote.

This does not align with the detailed plan and the rate hike at all. And I cannot emphasize this enough. In fact, approving the rate hike as it stands would severely delay any progress toward the C.L.C.P.A. goals.

In other words, approving the rate

hike as it is would result in a clear unambiguous failure to meet the C.L.C.P.A. deadlines. If you notice, National Grid did not provide any details of how they are quote, unquote, prioritizing this transition because those details do not exist, since they are not prioritizing them.

Paying $3.8 billion for National Grid to invest in their outdated gas system that would keep us burning fossil fuels into the 2080s is a direct rejection of the C.L.C.P.A. The numbers do not add up and we are not that dumb.

My second point in regard to the presentation. Under that same listing of priorities, they are quote, prioritizing benefits for disadvantaged communities, unquote. For those people who are not familiar, this term disadvantaged communities is a technical term used by NYSERDA, which is the New York State Energy and Research and Development Authority.

NYSERDA has produced a map of disadvantaged communities in Brooklyn. And if you look at that map, there is a remarkably high concentration of disadvantaged communities in areas where there is National Grid, fracked gas

infrastructure, such as the entirety of the North Brooklyn Pipeline from Brownsville to Bed-Stuy, and then across Bushwick, Williamsburg, and Greenpoint.

National Grid has created and have worsened to that problem that is to say they have been more than complicit in this as they have been proactive agents of environmental racism repeatedly targeting areas like Brownsville, Brooklyn, which has some of the worst asthma and cancer rates in the entire country because of this very history.

Again, there was no sufficient details of how they're doing this because those details do not exist. We live in a world where climate crises have become normalized in everyday occurrences. This is a global problem. And the specific rate case is something that impacts all of us and disproportionately impacts socially vulnerable and poor people.

Instead, National Grid focused on greenwashing. And then earlier -- in the earlier session this afternoon, there was a few people who spoke about how National Grid gave money to a school or to a garden. Now, I'm a teacher who loves to garden but that's not what we're talking about right

now.

This rate case is not about National Grid -- I'm sorry, this rate case is not about National Grid customers in Brooklyn paying nearly $400 more per year to support National Grid's volunteer efforts. That is not their job and that is not our duty.

Taking it -- what they are doing is taking advantage of differences in power to say that something is nice and good, when in fact it is killing you and I mean that. A 2021 study from Harvard School of Public Health found out one out of every five deaths is attributable to air pollution from fossil fuels.

That's 20 percent of deaths in general are attributable to air pollution from fossil fuels. How are we even still talking about this continuing into the future? We are at a critical moment. A rate case is meant to be a democratic process, but has been designed to be anything but.

One critical step we can take toward a legitimate and sufficiently democratic process is to have an independent assessment for the requested investments for the Greenpoint Energy Center. We're

talking about half a billion dollars. I urge the P.S.C. and their commissioners to take this request seriously.

These moments of decision-making are absolutely critical and are enormous and impact people for generations. I appreciate Elliott's comments about the P.S.C. and wanted to emphasize that you now have an opportunity to strengthen that legacy as individuals and as a collective. Thank you very much for your time.

A.L.J. LEARY: Ash Wolfson is up. Ash Wolfson. Margot Spindelman, you're on deck.

MR. WOLFSON: Hi, my name is Ash Wolfson, that's W-O-L-F-S-O-N. It is disgusting that we could be considering a rate hike during this cost of living crisis. I know so many people who are considering -- who are not going to the doctor, who are cutting -- who are cutting back on the food that they eat, who are considering going homeless or leaving the State, just because they cannot afford to continue to live here.

We are oppressed on the one hand by low wages. And on the other hand by high rent, high cost of food, high cost of medical care, and high

cost of education. We -- it is unconscionable to raise rates in this context.

Furthermore, the fact that these rates are being raised in order to fund the continuing poisoning of New Yorkers and of the climate is disgusting. It'd be one thing if they wanted to raise rates to do something that would benefit us, but they are actively harming us, it is literally poison.

Over the past few months, we have lived through climate crisis after crisis as we are buffeted, we can't continue to do this. To the lawmakers who are considering this rent -- this rate hike, we ask that you listen to your constituents and listen to your conscious, or failing that at least listen to the law to National Grid if you want to help us, leave.

A.L.J. LEARY: I have five people that still need to speak and we need to leave in 10 minutes. This room has to be cleared. I leave it to you to respect the people that are following here.

MS. SPINDELMAN: I've made it real short.

A.L.J. LEARY: Good.

MS. SPINDELMAN: My name is Margot Spindelman, S-P-I-N-D-E-L-M-A-M. The world is breaking everywhere, even here. And this proceeding is going on like there's no tomorrow. You're right. There's no tomorrow, not the way you're running things. Kim Fraczek read me this quote from the Cop City protests where people who are waging justified were tear gassed by the police this week.

Here's the quote. This is a global war of incompatible visions for the future. The P.S.C. needs to think about which side they're on, thank you.

A.L.J. LEARY: Josef -- Josef Reisenbichler and Caleb Weil, you're on deck. Josef. Is Caleb Weil here? Good.

MR. REISENBICHLER: Hello. Yeah, you said that right. Hello, my name is Josef, do you need me to spell my last name? Okay.

My name is Josef Reisenbichler, I've been a New York resident my whole life, lived in Queens, Bronx, I grew up in the Lower East Side. And I currently reside in Bed-Stuy.

Since -- since the end of school, I've been a participant, a volunteer, and even a worker in

many environmental organizations working to keep fracking out of New York State, which we were very successful at because we are facing a climate crisis in which we are about to reach tipping points that will be beyond our control.

And that will leave New York City as one of the many coastal cities that will be underwater if we do not take direct -- direct action on this issue right now. So National Grid did not inform the communities of New York about this new project in order to inform them about these rate hikes which we will have to pay for their shareholders which they are not, which is the -- who they are loyal to in the first place is generating profits for themselves and their shareholders and not actually using this project to meet New York's immediate energy needs.

Therefore, I am urging the entire State of New York and the entire world to come together and to reject all new fossil fuel energy projects. We must reject -- we must also reject the idea of the emissions targets, it's the only thing that we need in order to confront this crisis.

We need to actually stop what is

causing the crisis in the first place, which is only fossil fuel projects, coal-fired power plants, oil and gas and right -- right now, new fracked gas and infrastructure as a -- as a brown, low-income resident who has lived in New York City my whole life, fighting for my family who has witnessed many climate disasters here in the State, as well as other communities that we have worked together with.

I'm urging us to reject National Grid's $4 billion rate hike, and to support renewables, all thermal energy networks. And also, we -- in order to transition away from fossil fuels and to not use fossil fuels in order to build new clean energy projects. We need a new baseload of energy to do this.

And this is why I'm currently working with an organization called Nuclear New York because I believe that we must -- the nuclear energy must be included in the transition to a clean energy grid. It is -- it is the misinformation has caused us to fear this energy source and this prevent -- and this actually push new fossil fuel infrastructure into New York due to like the closing of Indian Point, which I admit and I have campaigned for, but right now, I

believe that we must work on relicensing this plant and other new advanced nuclear power plants because they have to be part of the whole transition to a clean energy source.

And we must listen to the science of all of this rather than the -- we must listen to the words of a scientist instead of our own fears. As you know, climate change has become way too urgent for us to be afraid of investing in renewables, investing in new thermal energy networks, and nuclear.

So again, as a brown low-income resident with a whole family of brown low-income, you know, relatives I'm urging -- I'm urging everyone, the entire state to reject all fossil fuel energy projects and support, as I said, all -- all the clean energy renewable sources that we can including nuclear, so thank you. And solar wind.

A.L.J. LEARY: Caleb Weil. Kim Fraczek, you're on deck.

MR. WEIL: Yeah, W-E-I-L, Caleb Weil. Hi everyone, my name is Caleb Weil, I work with the Urban Homesteading Assistance Board's climate resiliency team, where we connect affordable co-ops

across New York City with resources to help their buildings become more sustainable, affordable, and resilient in the face of climate change.

The Public Service Commission must deny this rate hike, not only to halt the expansion of harmful fracked gas infrastructure throughout some of New York's most vulnerable communities, but also because in order to meet city and State decarbonization goals, we must lessen not increase the burden of the cost of energy.

Energy burden, which is where households spending more than 6 percent of their income on utility bills is one of the most common issues facing the community we work with. So energy burden is an extra cost on those living in inefficient buildings.

It also creates a cycle whereby people cannot budget for energy upgrades because of high utility bills and they're forced to put off preventative and cost-saving maintenance from solar to heating system optimization that would reduce energy burden in the long run.

We've seen rising utility costs for fuel and electricity over the past few years with

very few options for relief for those living in affordable housing. Spending more on energy means saving less for cost-saving carbon-reducing upgrades -- upgrades that need to be implemented in order for the city's goals of eventual carbon neutrality to better the air quality in some of our city's most disadvantaged neighborhoods and ultimately, to lower the cost of energy for all.

At this critical moment, we need to invest in the health of our communities, in clean energy, and in energy systems that work for all of us, not in the expansion of toxic fossil fuel infrastructure, which only benefits the investors and executives of National Grid.

In summary, I'm here to urge zero dollars for the fracked gas infrastructure. And yeah, thank you very much for your time.

A.L.J. LEARY: Kim Fraczek. Anne Basson, on deck.

MS. FRACZEK: I didn't present -- prepare a testimony tonight, I'm part of the rate case as -- as you all know, my name is Kim Fraczek, I live in Bushwick, Brooklyn, I'm a National Grid ratepayer for the last 20 years.

Tonight is the Community Board 1, Brooklyn meeting right now where we're sitting in this room and they are voting tonight as the environmental committee of Community Board 1 has put forward a motion to deny the rate hike for any fossil fuel infrastructure.

And also, to -- the Community Board 1 wants to be involved in a stakeholder process to really take a look at 287 Maspeth, which is a huge parcel of land in our community that is dedicated to fossil fuel expansion, no, we don't want this anymore.

Additionally, so they -- I will be filing that letter in the -- in the docket. Additionally, there's a huge meeting for a lot of our assembly and senate tonight. And there's another meeting for our city council tonight.

So they were not able to be here and speak at our press conference today, but Senator Julia Salazar and Assembly member Ellen -- Emily Gallagher led a letter of 30 other senators and assembly members in the district of National Grid, whose customers would see this rate increase.

They also just sent a letter to

Governor Hochul and the Public Service Commission which I will also be filing into the docket. Additionally, the city council sent a letter to the Public Service Commission that we will be uploading into the docket. So I just want to -- what you see here, there's more of us and people that represent us, there's more of us out there that don't want this rate hike.

And we don't want to see 287 Maspeth expanded. Additionally, we're standing a few blocks from -- on Saturday, National Grid had a massive pipeline leak over on Atlantic Avenue. And right now, there are workers over there that have shut down the whole block. The pharmacy has closed.

The grocery store has closed because of gas infrastructure that National Grid is in charge of. Let us not be bailing out the basement when there are holes in the roof, okay? No more digging up the ground to pull out a bad piece of infrastructure to put another piece of the same infrastructure and thanks.

A.L.J. LEARY: Thank you. Anne, come on up.

MS. BASSON: Hello, I'm Anne Basson,

I'm a semi-disabled anti-fracker. I'm here, I didn't prepare anything but I -- the only way I knew about this was from my activist friends. So when National Grid speaks about community outreach, the only way I knew is because I'm part of the choir, right? And I live in an area of Brooklyn called Little Bangladesh.

A third of my neighbors are the people that deliver the high -- in the food to the high-income people, racing around for 12 hours a day on those, you know, motorbikes that are killing people. I can guarantee you none of those people knew about this public hearing and they don't have time to come here because they're eking out a living delivering food, like I said, to people who have no time -- don't take the time to go shopping for themselves.

The other issue is as far as we saw flooding, my neighbor, my friends who don't live in New York, were calling me, are you okay? You know, the subways are flooding. How much more do you need to know that we are in a climate catastrophe? We don't have till 2080, we don't have even 10 years probably.

So no more fracked gas, no rate hikes, which I can't afford, and I can guarantee you, none

of my neighbors can afford. No, no, no, thank you.

A.L.J. LEARY: Wow, we got to everybody. And we need to leave right away. But I want to thank all of you again. Just remember there are other ways to comment if you have a comment that you would like posted to D.M.M. There are a number of people in this room including me that will help you do that. I have a couple of comments here. Please feel free to do that and have a wonderful evening. Thank you again.

AUDIENCE MEMBER: Can we ask a question?

A.L.J. LEARY: I -- I that -- it would take me a long time. It's very difficult to get a venue in Brooklyn. It's extremely difficult.

AUDIENCE MEMBER: It's worth the effort.

A.L.J. LEARY: This is absolutely worth the effort. And it's a wonderful place. So thank you to the Brooklyn Public Library for having us.

(The hearing concluded at 7:48 p.m.)

STATE OF NEW YORK

I, DANIELLE CHRISTIAN, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 114, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 21st day of November, 2023.

DANIELLE CHRISTIAN, Reporter